

Hemant Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 4 April 2023 · WRIT - C No. - 10344 of 2023 · **Writ disposed; fresh theft order to follow Supply Code.**

HEADNOTE

The Allahabad High Court disposed of a writ against an electricity-theft demand of Rs. 6,60,765 after the Electricity Department withdrew the notice dated 3 March 2022 and fixed 19 April 2023 for hearing, leaving the respondents at liberty to pass a fresh order strictly in accordance with the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Hemant Yadav petitioned the Allahabad High Court against a demand notice dated 3 March 2022 by which respondent no. 3 sought Rs. 6,60,765 for alleged theft of electricity. After an adjournment on 29 March 2023, counsel for the Electricity Department stated on 4 April 2023 that the demand notice had been withdrawn and that the petitioner had been called for a hearing on 19 April 2023, following which a fresh order would be passed. A copy of the hearing notice was handed over in Court.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

fresh order after withdrawal of a theft demand

HOLDING

Where the Electricity Department withdraws the impugned demand notice for an electricity-theft recovery and fixes a hearing before a fresh order, the writ challenging that notice is disposed of with liberty to the respondents to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1-3

FLAG The order names the U.P. Electricity Supply Code, 2005 and no numbered clause.

PRINCIPLE TAGS

writ-disposed-liberty-to-proceed-under-supply-code-after-demand-withdrawn The Department having withdrawn the theft-demand notice and fixed a hearing, the writ was disposed of and the respondents were left at liberty to pass a fresh order only by the procedure in the U.P. Electricity Supply Code, 2005. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ELECTRICITY-THEFT RECOVERY OF RS. 6,60,765.

The demand notice dated 3 March 2022 was withdrawn. A fresh order is to follow the hearing fixed for 19 April 2023. The Court did not examine the demand on merits. ¶ 1-3